



Book	Policy Manual
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New Policy - Vol. 43, No. 2

7421 – RESTROOMS, LOCKER ROOMS, SHOWER ROOMS AND CHANGING ROOMS

The Board of Education will provide appropriate restrooms, locker rooms, shower rooms, and changing rooms for students, employees, and visitors in accordance with this policy.

Definitions

For purposes of this policy, the following definitions apply:

"Biological sex" means the biological indication of male and female, including sex chromosomes, naturally occurring sex hormones, gonads, and non-ambiguous internal and external genitalia present at birth, without regard to an individual's psychological, chosen, or subjective experience of gender. A birth record that is issued at or near the time of an individual's birth may be used to prove the biological sex of an individual.

"Family facility" means a family restroom or shower room that does not have more than one (1) toilet or shower.

"Multi-occupancy facility" means a restroom, locker room, changing room, or shower room that is accessible to multiple individuals at the same time. This term does not include family facilities.

Gender Designation of Multi-occupancy Facilities

The Board will designate for the exclusive use of the male or female biological sex each student restroom, locker room, changing room, or shower room that is accessible by multiple students at the same time which is located in a school building or a facility used by the school for a school-sponsored activity.

The Board will not construct, establish, or maintain a multi-occupancy facility that is open to all genders. However, this policy does not prohibit the Board from constructing, establishing, or maintaining a family facility.

Permissible Access of Multi-occupancy Facilities by the Opposite Biological Sex

An individual of the opposite biological sex may access a multi-occupancy facility in the following circumstances:

- A. A parent, guardian, or family member who is assisting a child under the age of ten (10), or a child under the age of ten (10) who is being assisted by a parent, guardian, or family member;
- B. A person with a disability who is being assisted by another person, or an individual who is assisting a person with a disability;
- C. A school employee whose job duties require them to enter a multi-occupancy facility that is designated for use by the opposite biological sex;

- D. An individual who enters a multi-occupancy facility designated for the use by the opposite biological sex because they reasonably believe that they are responding to a legitimate emergency situation.

Accommodations for Special Circumstances

The Board may provide accommodations at the request of a student due to special circumstances. Accommodations may include the use of single-occupancy facilities or controlled use of faculty facilities.

Violations of this Policy

Any student who willfully enters a multi-occupancy facility designated for use by the opposite biological sex for a purpose other than what is considered permissible pursuant to this policy, and refuses to leave when asked to do so by school personnel, is subject to discipline in accordance with the Student Code of Conduct.

Employees who willfully enter a multi-occupancy facility designated for use by the opposite biological sex for a purpose other than what is considered permissible pursuant to this policy, and refuses to leave when asked to do so by administrative personnel, are subject to discipline, up to and including termination of employment.

Any other person who willfully enters a multi-occupancy facility designated for use by the opposite biological sex for a purpose other than what is considered permissible pursuant to this policy, and refuses to leave when asked to do so by school personnel, may be removed from the premises and subject to future restrictions.

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